

2:00 PM LINE 10

25-CLJ-02523

CAPITAL ONE, N.A. VS. OSWALDO SABAN

CAPITAL ONE, N.A.
OSWALDO SABAN

JANET L. BROWN
JENNIFER TUNDER

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

Plaintiff's unopposed motion for summary judgment is **GRANTED**.

Plaintiff has met its moving burden under Code of Civil Procedure, section 437c, subdivision (p)(1) to show that there is no defense to the action. See Undisputed Material Facts 1-8 and the declaration of Maria Conley.

Judgment shall be entered for plaintiff in the amount of \$8,380.38. The evidence submitted by plaintiff, as referenced in its separate statement, demonstrates that there are no triable issues of material fact, and that defendant breached his agreement to pay the amount due under the Cardmember Agreement with Discover Bank, to which plaintiff Capitol One, N.A., is the successor by merger. Plaintiff's evidence shows that defendant owed \$8,380.74 on the credit card account ending in 9734 as of July 20, 2022, which amount has not been paid despite a demand. (See Conley Decl., ¶¶ 1, 6, 7, 11; exhs. A & B, at p. 11.)

Plaintiff is to prepare the proposed judgment. Plaintiff's memorandum of costs is premature. If defendant does not timely file a motion to tax or strike, the court will amend the judgment to include costs as permitted by the Code of Civil Procedure, section 1033.5.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 11

25-CLJ-05253

U.S. BANK NATIONAL ASSOCIATION VS. OLGA C ENRIQUEZ

U.S. BANK NATIONAL ASSOCIATION
OLGA C ENRIQUEZ

STELLA PARK
ANDREW J. GRAMAJO

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

In this debt collection case, on March 27, 2026, plaintiff U.S. Bank National Association moved for summary judgment against defendant Olga C. Enriquez. Plaintiff served defendant's counsel by mail. However, that method of service is improper where defendant is represented by counsel. Plaintiff was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail permitted, there is no indication that the envelope was properly addressed to include Cordoba Legal Group, which is part of the address of record for defendant's counsel. (See Answer, p. 1.)

Defendant's counsel of record, Andrew J. Gramajo, filed a motion to be relieved as counsel on June 17, 2026, which is scheduled for hearing January 27, 2027. (See Motion to be Relieved as Counsel, filed June 17, 2026.) Mr. Gramajo's supporting declaration for the motion to be relieved as counsel states that he left Cordoba Legal Group approximately one year ago, that the client relationship was expressly between defendant and Cordoba Legal Group, and that he does not have access to Cordoba's files/systems/email. Mr. Gramajo states that he is unable to communicate with defendant and that his name remains as the counsel of record because of Cordoba's administrative failure to file a substitution of attorney. (See Declaration, filed June 17, 2026, ¶ 2.)

"Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is **DENIED without prejudice** to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's